Can Kant's *Categorical Imperative* ground an environmental ethic?

Whaling and the International Whaling Commission

LIST OF ABBREVIATIONS

CI - *Categorical Imperative*

FH - *Formula of Humanity*

FUL - *Formula of Universal Law*

Groundwork - *Groundwork of the Metaphysics of Morals*

ICRW - International Convention of the Regulation of Whaling

IWC - International Whaling Commission

Metaphysics - *Metaphysics of Morals*

PP - *Perpetual Peace: A Philosophical Sketch*

Theory and Practice - *On the common saying: That may be correct in theory, but it is of no use in practice*

UH - *Idea for a Universal History with a Cosmopolitan Purpose*

ABSTRACT

Can Kant provide an account of universal environmental duties? This question will be tackled in two parts: individual and political environmental duties. Through an analysis of several of Kant's moral and political works (notably, Groundwork, Metaphysics, PP, Theory and Practice and UH), Kant will be found to convincingly provide an anthropocentric justification of environmental duties on an individual level, although he does not provide the grounds to impose them on a state-level. This essay's novel contribution to the literature that relates Kant to environmental ethics is the application of the Categorical Imperative. Two formulations of the Categorical Imperative are found to be well-suited to assess the moral permissibility of environmentally-damaging actions. With the aid of scientific literature on marine ecosystems, the maxims underlying most types of whaling are found to be morally impermissible according to the Categorical Imperative. Following this, said finding is applied to the context of Japan's withdrawal from the International Whaling Commission. Through a political international relations lens, it finds that the IWC closely approximates to Kant's preferred international organisation: a federation of states. The IWC regulations are also found to be mostly in line with the Categorical Imperative, for example by banning commercial whaling. Although aboriginal whaling (allowed by the IWC) has been found to mostly align with the Categorical Imperative, through anthropological studies, Kant would not permit an exception to be made based on cultural reasons.

PREFACE

I first became interested in this issue when learning about Japan's withdrawal from the International Whaling Commission, and its resumption of commercial whaling, becoming one of the few countries in the world to do so. Upon further investigation, I found that Japan had consistently opposed universal restrictions on whaling throughout the existence of the IWC. The dispute between cultural and economic considerations encouraged me to turn to Kant, as he fervently defends the primacy of reason, and the moral principles derived from reason, over other considerations. I thus set out to investigate whether Kant could shed light on the existence of environmental duties.

Having studied both Kant's thoughts and environmental ethics in separate classes, I became aware of the fact that the two were rarely put together, as the consensus view in environmental ethics regarded anthropocentric arguments as antithetical to environmental concern. This seemed to me to be a worthwhile opening for research. If I could successfully derive environmental duties from Kant's works, this argument would have the potential to appeal to people on all ends of the environmental spectrum, even those who have little concern for the environment for its own sake. Amongst the small albeit growing literature on Kant's environmental ethics, I observed that the *Categorical Imperative* – the foundational concept of Kant's moral philosophy – received little mention. Thus, I decided to investigate this route.

Having also studied environmental science, I knew that any moral judgement would be incomplete without the nuance provided by natural science research. Studying the literature on the dynamic ecosystem effects of whaling allowed me to determine the

severity of this environmental damage, and incorporate a consideration of future generations in my analysis. The fact that this research question incorporates natural science, anthropology and international relations into the main moral and political philosophy discussion makes this a subject of interdisciplinary research.

Kant's scholarship, which has much served to inform the moral and political foundations of our current society, can still lend a hand in solving current environmental challenges. In this essay, Kant elucidates issues such as the moral permissibility of certain types of environmental harm such as whaling, the legitimacy of coercion on environmental grounds and the primacy of universal duties over cultural specificities.

INTRODUCTION

The purpose of this essay is to evaluate whether an anthropocentric account of universal environmental duties can be drawn from Kant's moral and political writings. This essay employs the illustrative example of whale hunting (also known as whaling) and its environmental effects to explore the reach of environmental duties.

The development of new technologies during the mid-nineteenth century such as the gun-loaded harpoon and steamships (Ellis, 1991: 245) initiated a period of intensified whale hunting which had become one of the largest wildlife exploitations (in terms of biomass) in human history by the twentieth century (Clapham *et al*., 2008: 184). In response, the International Whaling Commission (IWC) was created in 1946 to conserve the whale species and order the development of the whaling industry. The Moratorium on Commercial Whaling was adopted in 1982 by the member countries of the IWC which banned commercial whaling, whilst allowing scientific whaling and subsistence whaling for certain aboriginal communities. Although a member of the IWC, Japan consistently opposed the moratorium, and withdrew its membership in 2018, resuming commercial hunting in July 2019. The Japanese delegation argued that whaling is an integral part of their culture, and thus, the cultural right to whale hunt should override international whaling standards (Ministry of Foreign Affairs of Japan, 2018). This shows that the tension between universal duties, such as the environmental duties presented in this essay, and cultural differences is at the heart of international law.

I will briefly describe the context in which this research question sits. Within environmental ethics two broad categories can be distinguished: anthropocentric and

ecocentric arguments.[1] The former is based on the intrinsic value of humanity, whereas the latter attributes ethical value to nature (Goodpaster, 1979: 26–8). Although many claim that anthropocentrism is contrary to an environmental ethic by being negatively related to environmental concern (Schultz *et al.,* 2005) and behaviour (Thompson and Barton, 1994), this essay will provide an anthropocentric account of environmental ethics, based on Kant's works. As Kant establishes that 'only a rational being has the capacity to act *in accordance with the representation* of laws' (4:412),[2] notably, the moral law, humanity's actions will be the focus of moral concern, and the environment will be framed in terms of its benefits to humanity.

I see value in providing a Kantian account of environmental duties for several reasons. Firstly, Kant inherited and established himself within the philosophy of the Enlightenment, which is built upon assumptions that are embedded in our cultural understanding (Altman, 2011: 283), anthropocentrism[3] being one of them. Secondly, an anthropocentric account of duties relies on less assumptions than an ecocentric account, as it does not need to justify the intrinsic moral worth of nature. Thus, if successful, the conclusions of this argument will be more parsimonious. Thirdly, the strongest opponents of environmentalism are those who give no consideration for the environment *per se*, seeing its sole value of satisfying the wants and needs of humanity. By building an environmental ethic on the assumption held by opponents of environmentalism, my argument has the potential to be convincing across the fault lines of environmental ethics.

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[1] Zimmerman *et al*. (1993) present essays covering the spectrum of views within environmental philosophy.
[2] Throughout this essay, I will use standard referencing practices for Kant's works, using the volume number of the *Akademie Ausgabe* edition followed by the pagination of the standard German edition.
[3] Wood (1998: 189) specifies that Kant's ethical theory is *logocentric* rather than *anthropocentric,* as 'the authority of the moral law [is] grounded in the fact that it is legislated by rational will'. This means that our "humanity" does not refer to our biological species, but our rational nature. Nevertheless, the implications for environmental ethics remain identical to the anthropocentric approach.

An analogous strategy is employed by Judith Jarvis Thomson (1971), who strengthens her defence of abortion by assuming the most central assumptions on the opposing side. By doing so, Thompson presents an argument that people will be able to accept regardless of their views on the contentious point of the personhood of a foetus (47). Similarly, an account of environmental duties that is built on the anthropocentric assumptions held by opponents of environmentalism has the potential to appeal to a wide variety of people, both those holding anthropocentric and ecocentric assumptions.

Finally, a foundational concept of the Kantian account of duties is the *Categorical Imperative*, which is, in this essay, the central concept used to ground environmental duties. The *Categorical Imperative* is particularly pertinent to international environmental politics as it demands that the principles upon which duties are based be universalisable. The conflict between cultural specificities and international conventions (which enshrine universal duties) is the cause of dead ends in international attempts to bring about decisive environmental governance, illustrated by Japan's opposition to the whaling moratorium. The CI proscribes commercial whaling as the maxim behind this action cannot be universal without being contradictory in several ways. Although Kant's political philosophy does not directly envision an imposition of the CI, Kant's preferred system of international order resembles the IWC, who sets standards that are mostly aligned with the CI.

METHODOLOGY

To the end of applying Kant's philosophy to environmental ethics, I will explore several of his works, referring exclusively to the Cambridge Edition of the Works of Immanuel Kant, to overcome translation differences from Kant's native German. For discussion on individual environmental duties I will explore the *Groundwork of the Metaphysics of Morals* and the *Metaphysics of Morals,* as together they expound Kant's moral philosophy. *Metaphysics* develops the concept of the *Categorical Imperative*, which will be the focal point of this essay. The third of Kant's three seminal works on moral philosophy is the *Critique of Practical Reason*. This work has been excluded from this essay's analysis as it pertains to the authority of the moral law derived from the freedom of the will (Part I.I) and the use and principles of practical reason (Part I.II and Part II, respectively). As the *Critique of Practical Reason* focuses on the nature, rather than the content, of true moral commands, I have not found it to be essential to ground environmental duties.

To address the political duties emanating from individual environmental duties, the following essays have been explored, as they develop Kant's vision of an international order: *Perpetual Peace: A Philosophical Sketch, Idea for a Universal History with a Cosmopolitan Purpose* and *On the common saying: That may be correct in theory, but it is of no use in practice.* Although Kant has other works on political philosophy, such as *Answering the Question: What Is Enlightenment?* it has been excluded from the analysis as it has less relevant applications to international governance. The *Critique of the Power of Judgement* is referred to occasionally to clarify Kant's conception of “culture”.

This essay is interdisciplinary in nature due to the requirements of the question at hand. I will principally employ moral and political philosophy and will bolster the philosophical discussion of Kantian scholarship with three additional disciplines. I will draw on existing scientific, anthropological and international relations research to support my philosophical analysis. Rather than employing the methodologies of these three *a posteriori* disciplines that rely on empirical experience, their results will feed into my *a priori* philosophical case[4] in the following way. Firstly, the scientific literature on the effect of whaling on marine ecosystems will be explored in order to best inform moral judgements. Studies that employ dynamic modelling will be preferred over static quantifications of whale stocks, as the former capture the long-lasting effects of whaling on the wider ecosystem. Only with the nuance provided by the scientific literature can whaling truly be used as an illustrative example when applying Kant's *Categorical Imperative*, which would otherwise rely more heavily on speculation. Secondly, international relations will inform the question of how the International Whaling Commission approximates to Kant's vision of international order. Thirdly, anthropological studies will detail aboriginal whaling practices, in order to determine their permissibility within a Kantian framework.

[4] The reader may find it useful to refer to *The Oxford Handbook of Philosophical Methodology* (Cappelen, Gendler, Hawthorne: 2016), which comprehensively outlines the philosophical method. In particular, pages 71–77 are relevant to understand the Kantian approach, although it is not essential in order to follow the reasoning I will lay out in Part III of this essay, as the necessary Kantian concepts are explained in Part II.

ECOSYSTEM EFFECTS OF WHALING

In order to paint a complete picture of environmental duties, I will now assess the environmental implications of human activity from a scientific point of view, before turning to the ethical implications. As whaling is the illustrative example under ethical consideration, it is important to understand the ecosystem dynamics involved. This helps to determine the impact of human activity on the environment, and consequently on human welfare.

In the chapter of *Moby-Dick* entitled *Does the Whale's Magnitude Diminish? – Will He Perish?* Ishmael proclaims the whale to be 'immortal in his species, however perishable in his individuality' (Melville, 2012: 537). This attests to the contemporary view that human activity had a limited influence on nature. Consequently, scientific research detailing whale stocks and the effect of whaling on marine ecosystems did not emerge until the beginning of the twentieth century (Dyrdal, 2019: 89). Following an intensification of public interest for whaling and its effects, 'consensus [emerged] among experts in the mid-1930s that whale stocks had declined' (Dyrdal: 87). Studies such as Christensen (2006) and Rocha *et al.,* (2015) find that whale populations worldwide were severely depleted by commercial whaling in the late nineteenth and early to mid-twentieth centuries. Following this, scientific pursuits turned to uncover whether whale populations showed signs of recovery from depletion. One approach is to quantify whale stocks through sightings.[5] However, a more complete picture is depicted by ecosystem studies that capture the dynamic effects of changes in whale stocks. Such a dynamic view allows

[5] Examples of such studies are Gibbs *et al.* (2018), Morais *et al*. (2017), Aguilar and Borrell (2007), Hacquebord (2007) which use both historical catch records and whale sightings to estimate the size of whale populations.

Clapham *et al.* (2008) to explain why eleven subpopulations of five species of Baleen whales did not recover following extirpation from commercial whaling, despite the cessation of whaling pressure.[6] These results demonstrate that when whale populations 'within small geographic areas' are greatly reduced, repopulation is unlikely to occur (193). With this dynamic effect in mind, Clapham *et al*. conclude that 'commercial whaling clearly represents a failure of management' (185). This insight is crucial for the moral assessment conducted in Part III to account for the lasting effects of whaling on the environment.

The scientific literature shows that the human imprint on marine ecosystems persists even if whale populations recover. Surma and Pitcher (2015) compare different ecosystem models of the marine food web before and after whale population recovery, to show the cascading effects on animal species beyond whales. Their results show that 'whale recovery is likely to have noticeable impacts on the structure of [certain] marine ecosystems' (302) due to their increased predation on certain populations. This result is used in the *surplus-yield model* to defend the practice of whaling, proposing that removing the top predator from an ecosystem increases the abundance of prey, seen as a positive result for the productivity of fisheries (Yodzis, 2001: 79). However, Lavery *et al*. (2014: 888) challenge this finding by pointing out the enhancing effect that whales have on the fertility of their ecosystems by 'defecating iron that stimulates primary productivity in iron-limited waters'. When the *surplus-yield model* is modified to include the effect of iron-rich defecation, Lavery *et al.* find that whale populations promote the

[6] The reasons proposed are: firstly, the loss of *cultural memory* of the habitat (the lack of recovery of breeding grounds, feeding areas, migratory routes...); secondly, the simultaneous elimination of adjacent stocks by widespread whaling, which could otherwise be sources of repopulation; and thirdly, the abandonment of certain areas because of the segregation of whale subpopulations that follows exploitation.

productivity of fisheries, rather than reducing fishery yields. This is because whales are a *keystone species,*[7] which means that they have a disproportionately large effect on their ecosystems by both controlling populations of certain species and providing resources for others (Thompson, 2015). To summarise, because of their central importance in the ecosystem, whaling and its subsequent implications (both the depletion and the recovery of the whale population) has a widespread cascading effect on other species and thus, the health of the ecosystem. Although the extent of this effect is still under discussion in the scientific literature to date, the existence of such an effect is uncontested.

Because I provide an anthropocentric account of environmental duties in this essay, I will now frame the environmental effects of whaling in anthropocentric terms. Ecosystem services are apt for this purpose, whereby the 'functions and products of ecosystems that benefit humans' are measured (Millennium Ecosystem Assessment, 2005). As the concept gained momentum from 1997 onwards (Lele *et al.*, 2013: 343), classification frameworks emerged such as the Common International Classification for Ecosystem Services (CICES). Cook *et al.* (2020: 3) detail the ecosystem services provided by whales according to the CICES classification framework, some of which are described in the information box below. An ethical problem that emerges is that several of these ecosystem services come into conflict, namely those resulting from live whales (such as climate regulation), as opposed to those resulting from hunted whales (such as food provision). In the subsequent ethical analysis, I will show that ecosystem services resulting from live whales should be privileged over those resulting from hunted whales.

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[7] Coined by Robert Paine in his seminal 1969 paper *Food Web Complexity and Species Diversity*, which revealed that certain species were more vital for the ecosystem's functioning than was previously conceptualised. The name *keystone species* was given due to the dependence of the ecosystem on their presence to maintain the ecosystem's structure.

Ecosystem services resulting from hunted whales

According to Cook *et al.*, consumption of whale meat is less common in the modern era and is increasingly consumed by tourists of whaling countries as a novelty food product (2–3). Nevertheless, subsistence whaling is still practiced in Greenland, Siberia, Indonesia, Canada and certain islands of the Caribbean (3). Other services include products derived from bones and oil from blubber, such as art pieces, piano keys and lamp oil, although modern usage of these is limited (4).

Ecosystem services resulting from live whales

Live whales provide climate regulation and maintenance services. For example, they enhance the productivity of ecosystems through chemical means (such as nutrient cycling, whereby iron is released from whale faeces and nitrogen from urine, enhancing the productivity of ecosystems - Lavery *et al*.) and physical means (being large animals, their movement distributes nutrients and oxygen in the water - James *et al*., 2017). Whales also contribute to the removal of carbon from the atmosphere by accumulating it in their bodies (Smith and Baco, 2003; Roman *et al.,* 2014; James *et al.*) and sequestering carbon when they die and sink to the ocean floors (Smith and Baco, 2003). To picture this, Pershing *et al.* (2010) calculated that restoring Baleen whale stocks to pre-whaling levels would remove 1.6x10^5 tons of carbon each year through *whale falls* (the term used to describe the process of whales sinking to the seabed when they decease).

PART I

Clarifying Kantian concepts

Given the complexity of the issue at hand, I now clarify and discuss some of the terms used in this essay, before expounding my arguments.

Duties

Environmental duties are understood as the moral duty humankind has (individually and collectively) to protect the environment. Knowing the specific action entailed by the duty to protect the environment requires knowing why we have this duty. Within environmental ethics there are those who argue that nature has a right to be protected, and thus we have a duty to nature (such as Regan, 1983: 99). A Kantian reading would not produce the same conclusion, as Kant makes it clear that only humans can take on duties and perform them purposively, ascribing ethics to humanity alone (Gillroy, 1998: 135). Nevertheless, this does not disqualify nature from being the subject of moral duty (Gillroy: 135). Moreover, Kant has a specific understanding of duties. A duty answers the question "What ought one to do?". While the word *ought* has two distinct meanings – something as a means to further some end, or as an end-in-itself – Kant would only find duty to be present in the latter sense (2:298). All moral duties emanate from the *Categorical Imperative,* which will be further explained in Part II of this essay.

Anthropocentrism and ecocentrism

Within the context of environmental ethics, there is an anthropocentric and ecocentric perspective. Anthropocentrism frames the environment in human terms, whereas ecocentrism (also called biocentrism) treats the environment as an end-in-itself, independently of its impact on humanity (Rottman, 2014: 1). Kant is mostly considered to be anthropocentric and individualistic, as his moral theory places great emphasis on human autonomy (Altman: 45; Attfield, 1983: 20–33). Environmental thinkers such as Hardin (1968) argue that individualistic anthropocentrism inescapably results in exploiting nature held in common. Others have argued that Kant is less classically anthropocentric. For example, Gillroy shows that Kant supports the independent value of nature on all four accounts provided by Harlow (1992: 28).[8] Alternatively, Lucht (2007: 132) demonstrates that Kant's aesthetics entail an interest in nature for its own sake, framing a non-anthropocentric justification for environmental ethics. Beck's (1960: 125) reading of Kant's scientific understanding of the place of humanity within nature also makes it harder to unquestionably place Kant in the anthropocentric camp. For example, in *Critique of the Power of Judgement* Kant provides a teleological explanation in which humans are the 'ultimate end of nature' (5:431). Although Kant considers humanity to be part of nature, he unequivocally distinguishes humanity from nature due to our unique rationality throughout his works (for example, 8:18; 6:392; 4:437).

[8] The four senses in which the value of nature is considered 'humanly independent' are when the value of nature is independent to (1) human interests and preferences; (2) human experiences; (3) human good; and (4) of human consciousness (Harlow: 28).

Instrumental and intrinsic value

Central to the discussion on anthropocentrism is the definition of intrinsic and instrumental value. Things can either be something that can be used as a means to a further end – having instrumental value – or something that has its own end – having intrinsic value. Kant defines intrinsic value as something that is an end-in-itself (Gillroy: 150). In *Groundwork*, Kant states that only humans are moral ends-in-themselves, as they have the ability to perform duties purposively (4:427). Human beings have intrinsic value due to their ethical capacity, ability and purposiveness. With regards to nature, Singer (1980: 231) interprets Kant to see nature in instrumental terms, to satisfy all their wants. In contrast, Gillroy contends that Kant's definition of *instrumental* 'is unique and unconventional' (133). According to Gillroy, Kant has two definitions of intrinsic value. Humanity is of inherent value in terms of its moral capacity, whereas nature is of inherent value in terms of its self-generating, self-regulating, evolutionary functioning (138). The acknowledgement of nature's independent functionality means that Kant would not allow nature to be used instrumentally by humanity to increase human utility at the whim of their subjective preferences. Thus, Kant would not support the unchecked use of nature for humanity's arbitrary purposes (Altman: 49).

PART II

Exegesis of Kant

Section 1. Moral Philosophy

In Kant's view, the fundamental aim of moral philosophy is to arrive at the foundational principle of morality (4:392), which *Groundwork* is devoted to. This is followed by *Metaphysics of Morals* which lays out a system of moral principles that apply 'to human persons in all times and cultures' (Rauscher, 2017) and provides a taxonomy of duties. For this reason, it is perfectly suited to our present purpose of establishing the primacy of universal environmental duties, beyond the cultural practices of different times and places.

In *Groundwork*, Kant establishes that moral principles emanate from the *Categorical Imperative*, which is based on the principle of autonomy. We rational beings derive our dignity from having an autonomous will (*wille*, or practical reason). This autonomy, which is 'self-directing, free of any guidance by natural impulse, social tradition, religious revelation or poetic inspiration' (Wood, 1996: xxii), allows us to set our own ends, and bestows us with intrinsic worth and moral responsibility. From this autonomous will we derive moral laws, which are the only conceivable source of moral obligation, as rational beings arrive at them through their own self-directed reason (Wood: xxii). Therefore, the common source of universally valid moral laws is autonomy (Wood: xxiv).

The fundamental principle of morality emanates from the autonomous will. This fundamental principle is the *Categorical Imperative*, the supreme rule for human deliberative action. All moral requirements are justified by the CI, thus being at the core of Kant's ethics and political philosophy. *Categorical imperatives* contrast with *hypothetical imperatives* in that the latter command an action to achieve another end, whereas the former command an action that is an end-in-itself (4:414). *Categorical imperatives* command absolutely whereas *hypothetical imperatives* do not. Therefore, by being directly necessary to fulfil an end-in-itself, and unconditional, duties emanate from *categorical imperatives* (4:425).

In *Groundwork*, Kant presents several formulas of the CI. Although there are several views concerning the equivalence of the three formulas of the CI,[9] in this essay I understand the three as one and the same law, viewed from different angles, as Kant says in *Groundwork:* 'the above three ways of representing the principle of morality are at bottom only so many formulae of the very same law' (4:436). The first formulation is the Formula of Universal Law (FUL):

> *'Act only in accordance with that maxim through which you can*
> *at the same time will that it become a universal law.'* (4:421)

There are two ways in which a maxim can fail the FUL: by a *contradiction in conception* or a *contradiction in the will*. Firstly, a *contradiction in conception* arises when 'a maxim cannot be willed as a universal law because the instrumental and consequential

[9] Wood's view (2017: 57) is that the three formulas are not equivalent, as each build on the previous one, whereas Wood attributes the view to Rawls and O'Neill that the first formula is the definitive formulation of the CI (1).

commitments that such willing requires contradict each other' (O'Neill, 1975: 26). A maxim that has a *contradiction in conception* cannot become a universal law without contradicting itself. For example, the maxim of making a lying promise to get out of difficulties represents a *contradiction in conception* (4:403). One cannot will it become a universal law without undermining the meaning of truthfulness that the second half of the maxim relies on. Secondly, a *contradiction in the will* arises when one cannot will that everyone adopts the maxim without contradicting one's own ability to act on it (4:424). This is due to our finite nature, we depend on others to support our natural endowments and to develop our human potential. It is of course conceivable that a selfish world exists, but Kant argues that it is not rational for humans to have ends and at the same time neglect the indispensable conditions for said ends (4:423). In other words, it is incoherent to act according to a maxim of indifference to the development of human potential (O'Neill: 27). For example, failing to aid others would be a contradiction in conception as it could not be willed to hold as a universal law while at the same time relying on other's assistance (4:423). Examples of maxims that present a *contradiction in conception* and *in the will*, in the context of whaling, will be provided in Part III. In summary, when we formulate the maxim of our actions, we can determine whether this maxim accords with universally valid moral laws by use of the FUL (Wood: xxiv).

As mentioned previously, Kant sees rational nature to be distinguished from the rest of nature by the capacity to set its own ends (4:437). The Formulation of Humanity (FH), the most frequently referred to by Kant in *Metaphysics*, honours the dignity of humanity as an end-in-itself. It is:

> *'Act that you use humanity, whether in your own person or in the person of any other, always at the same time as an end, never merely as a means.'* (4:429)

The third formula is the Formula of the Kingdom of Ends (FKE), which represents the community of rational beings as a kingdom. It is:

> *'Act in accordance with the maxims of a member giving universal laws for a merely possible kingdom of ends.'* (4:439)

These formulations lay the groundwork of Kantian moral deliberation.

Section 2. Political Philosophy

We have seen that Kant holds the CI to be the fundamental principle of morality. Rational moral agents derive their duties from it. Now, I turn to the political society to ask whether the CI is also the fundamental principle of political law. The role of Kant's morality in his political thought has been much discussed. Some scholars emphasise the link between ethics and politics, such as Flikschuh, claiming that 'law (politics) and ethics [...] form two distinct but equal branches of morality' (2000: 83). Wood also sees Kant's consistent message to be 'that the best political practice is always that informed by moral principle' (xxix), although Wood does not make such an intimate link between the two as Flikschuh does. For Kant, all political law follows the *universal principle of right*:

> *'Any action is right if it can coexist with everyone's freedom in accordance with a universal law, or if on its maxim the freedom of choice of each can coexist with everyone's freedom in accordance with a universal law'* (6:230)

It is clear that the language of the principle of right strongly echoes the FUL, indicating a relational link, the extent of which this section will explore. Despite this close proximity, I will argue that Kant's political theory is to be seen as separate from his moral theory, as the former is concerned with *outward actions* rather than *inner maxims,* and the former can be coerced whereas the latter cannot. Following this, Kant's writings on cosmopolitan right will be analysed to develop a picture of his preferred system of international relations.

State-level

Kant studies the state in the second half of the *Doctrine of Right*, where he establishes the rights of individuals relative to the state; and the second section of the essay *Theory and Practice*, which is a summary of the basis and role of the state. In *Theory and Practice,* Kant emphasises the importance of freedom, which he defines as independence from being constrained by another's choice. He says that the only innate right is freedom, 'insofar as it can coexist with the freedom of every other in accordance with a universal law' (6:237). The state exists to protect our innate freedom, as freedom is one of the three principles justifying the power of the state (8:290). The state exists to preserve such freedom and avoid the chaos of the state of nature, as it is the only body that can do so in a way that is consistent with citizen's equality (8:292). Kant specifies that the opposite of the state of nature is not a social but a civil condition (6:306).

Section 1 established that the autonomy, or self-legislation, of our rational will is foundational for the CI. I argue that the principles found in *Groundwork* and *Metaphysics* should not be directly applied to the political sphere. The reader should be aware that Kantians are faced with the charge of having an 'ethics-first approach to politics', meaning that political theory is but an application of moral principles (Geuss, 2008: 8), and thus fail to have a 'distinctively political thought' (Williams, 2005: 3). However, I will now provide three reasons why Kant's political theory is in fact distinct from his moral theory, responding to its own principles. In the context of whaling, this means that the moral judgements derived from the CI are not directly enforceable on the state-level.

Firstly, Section 1 has shown that the moral law is concerned with one's inner maxim. This is not the case for political laws, which are instead concerned with outward actions (Ripstein, 2009: 374). This explains how it is possible for Kant to suggest in *PP* that a just state can be established even in a nation of devils (8:366). This means that establishing a just state involves not the moral improvement of human beings, but rather the way in which coercive laws are set up to bring about peaceful conditions. This is echoed by the Sixth Proposition of the essay *UH:* 'From such crooked timber as humankind is made, nothing entirely straight can be made', implying that people cannot be trusted to comply to the 'universally administered right' (8: 22) without supplementing moral laws with political laws. Even *Groundwork* sets low expectations for individuals to comply with moral duties, as an individual 'cannot [...] count upon every other to be faithful to the same maxim' (4:438), or as Guyer puts it, 'crooked timber cannot always be counted on to be moved by morality' (2009: 130). Nevertheless, Guyer nuances this view, conceding that politicians should follow the moral law in order to administer just laws (143). The content of these laws, however, is distinct from – although ultimately influenced by – moral laws.

Secondly, whereas moral law cannot be coercively enforced (6:381), political laws legitimately can. Certain kinds of state coercion are compatible with the purpose of maximal freedom that is demanded by the *universal principle of right*. Specifically, the state can coercively avoid acts aimed at 'hindering of a hindrance to freedom' (6:231), providing the necessary conditions to secure freedom. In fact, to enter the civil condition is to 'subject [oneself] to a public lawful external coercion' (6:219). This type of coercion only restricts external freedom, the 'external relation of people to one another' (8:289), rather than internal freedom, the ability to set and pursue one's own ends. This reinforces

the independence between moral and political laws, as it is possible for an agent to be externally, although not internally, free.

Thirdly, the conception of self-legislation present in Kant's moral writings is not translated into his political theory. Although citizens of a state can be considered to self-legislate in the sense that the original social contract is determined hypothetically by the 'will of all', 'public will', or 'general will' (8:297), this type of decision-making does not apply to particular laws, which instead are determined by a majority of the citizens with voting rights. As citizenship does not extend to those who are not economically self-sufficient (such as women), this kind of decision-making is not entirely in accordance with self-legislation. Further evidence can be found in *Metaphysics* and *PP* that Kant does not stress self-government, as he favours autocracy above democracy, saying it is the best form of administration of right within a state (6:339), and is also more likely to achieve a republican constitution[10] (8:353). Hence, Kant would not support the kind of self-government that would result from an 'ethics-first' (Geuss: 8) application of his moral writings to a political context.

To summarise, political laws respond to the *universal principle of right*, which is inspired by, but is distinct from, the *Categorical Imperative* which determines moral law. It is possible for actions to be politically, although not morally, right: those which 'can coexist with everyone's freedom in accordance with a universal law, but whose maxim you cannot will as a universal law' (Hills, 2007: 25). Thus, we cannot confidently derive political duties from the CI. This means that although whaling will be shown to be morally

[10] A republican constitution enshrines the separation of the executive power from the legislative power (8:352), and is the only constitution 'that is completely compatible with the right of human beings' (8:366).

impermissible according to the CI, Kant's political philosophy does not envision this to be enforceable on the state-level.

Interstate-level

In *Metaphysics* Kant points out that although the German word used to describe international right is *Völkerrecht* (the right of peoples or nations), *Staatenrecht* (the right of states) should be used instead (6:343). This is because the latter places emphasis on relations among political entities rather than among groups of individuals. In this subsection I will focus on arguments pertaining to *Staatenrecht.*

Hurrell (1990) examines the range of scholarly interpretations of Kant's international relations, from *statist* to *universalist* ones. There are those, like Bull, who argue that Kant defends 'a universal republic as an ideal' (1976: 106). On the other hand, Hinsley points out the scholarly tendency to exaggerate Kant's envisioned federation of states (1962: 69). The clearest way to deduce Kant's international vision is to understand his justification for such a federation. Kant justifies the establishment of international order in a similar vein to the justification of a state, provided above. In order to avoid the lawless state of nature where states are in a condition of war against one another, a league of nations is necessary (6:344). As individuals have the duty to leave the state of nature, so do states, forming a union of states (6:350). This marks Kant's addition to political thought of the time, drawing the inextricable link between the national and international society: national laws alone are insufficient to escape the anarchic state of nature, international law is necessary too.

What kind of international order did Kant envision? In *Metaphysics* and *PP,* he presents three models of potential unions of states. The first model, a *single universal state*, is rejected given that rather than accomplishing the objective of entrusting peace among states, it either dissolves all states into one (8:353) or is impossible to govern (6:350). The second model is a *league of states*, which states voluntarily join to resolve international disputes, with no coercive power. Disputes are settled by voluntary negotiation to avoid waging a war.

The third model is a *federation of states* with coercive power, where decisions are taken through discussion among member states. This coercive power should be jointly executed by the member states, rather than a sovereign authority (6:344), and there should be an equilibrium of forces in which selfish inclinations are set up against each other (8:366). The power of states to join or leave the federation is unclear. Although states have a right to withdraw from the federation (6:344), Kant also insists on the indissoluble nature of the federation. Further still, he implies that states can be coerced into joining the federation, as states in the state of nature have the right to go to war with one another in order to establish a condition more closely approaching a rightful condition (6:344), which can be understood to be a federation. Although in *PP* he states that 'no state shall forcibly interfere in the constitution and government of another state' (8:346), I interpret this to pertain to state interference without, rather than within, a federation, otherwise Kant would have not called it an intervention of one state upon another. Additionally, as foreign interference is justified in critical circumstances (6:344), this does not lessen Kant's support of a federation.

Kant only approves of the second and third models of international unions. Although insisting that the third model, a federation, is preferable (8:356), he recognises that the second model, a league, may be adopted as a 'negative surrogate' as it is unlikely that rulers will tolerate such coercion upon their sovereignty (8:357). Efforts to progress to a federation of states must avoid lapsing into a single universal state (the first model), which Kant claims will descend into a 'graveyard of freedom' of universal despotism and eventual anarchy, as laws progressively lose their impact (8:367). For Kant, even a state of war is preferred to the first model of a universal union (8:367).

Nevertheless, the form of cosmopolitan order envisioned by Kant is obscured by several considerations. Firstly, Hurrell (1990) points out that a variety of German terms employed by Kant such as *völkerbund*, *föderation*, *föderalität*, *verbindung* and *genossenschaft* are translated into the single English word *federation* (191). Moreover, Kant's own usage of these terms is at times contradictory. For example, *völkerbund* is used differently in *UH,* where it can be understood as a *federation of peoples* (8:24) and *PP* where the term denotes a *federation of states*, as Kant indicates that he refers to 'people as states' (8:354). Secondly, as Kant consistently points out that a perfect solution to universally administering civil society is impossible (8:23), his method is an 'approximation by unending progress' (8:386). Thus, Hurrell interprets Kant's exploration of several models as a 'tentative and exploratory approach' of the costs and trade-offs of each solution (194).

PART III

Applying Kant to environmental ethics

During Kant's time, moral and political theory had no specific environmental application, as this was a time characterised by abundance rather than scarcity. The contemporaneous concern was the power of nature over individuals, rather than the influence individuals could have on nature (Gillroy: 132), reflected in nineteenth century whaling practices. Nevertheless, I will overcome this lapse by applying Kant's normative principles explored in Part II to whale hunting. Doing so will provide an anthropocentric account of environmental duties, which will be explored from an individual view (Section 1) and a political view (Section 2). I have identified in the literature four applications of Kant's scholarship to justify environmental duties.

Firstly, the *Doctrine of Virtue* of *Metaphysics* can be seen to generate an indirect environmental duty, born out of the direct duty towards other human beings. The *Doctrine of Virtue* also can be seen to engender environmental duties induced by the duty towards oneself to be virtuous. This is because protecting the environment is an activity that develops the character traits that are conducive to morality (Altman: 58). As Kant understands virtue to be ‘the moral strength of a human being’s will in fulfilling his duty’ (6:405), we are directly obligated to develop our virtue. The emphasis on virtue in the *Doctrine of Virtue* is convenient for our present purposes, as it does not require determining and measuring environmentally-right actions. This is helpful in the current context in which determining the social cost of environmental damages is complex and indicators of environmental harm currently lack consistency across different measures (OECD, 2003: 15). Nevertheless, Kant should not be understood to espouse virtue ethics

as they are typically understood, as his definition of a virtue is ‘an end that is also a duty’ (6:385) towards rational beings. Duties derived from the *Doctrine of Virtue* do not extend to the political realm, as, contrarily to duties emanating from the *Doctrine of Right,* they cannot be externally imposed (6:381).

Secondly, the argument is put forward that our unique human rationality imbues us with the universal duty to protect nature. Altman espouses the view that the same abilities that distinguish us from the rest of nature also make us answerable for our actions, thus placing the moral responsibility on us to avoid harming the environment. Wood develops this view, noting that ‘it is only to beings with rational ends that nature could appear as a system requiring to be fostered or preserved’ (1998: 205). As our unique perceptions, judgement and rationality are essential to what makes us human beings, stewarding nature emanates from our essential functions. What is more, Kant noted the following in his personal copy of *Observations on the Feeling of the Beautiful and Sublime*: ‘man’s greatest concern is to know how properly to fulfil his station in creation’ (20:41). From this, we can understand that if part of our ‘station in creation’ is to preserve nature, as Altman and Wood argue, it is of utmost importance to fulfil this duty. Nevertheless, this argument's assumptions are self-reinforcing: 1. it is nature's end to support human flourishing, 2. it is our duty to protect nature, so nature can support our flourishing, 3. protecting nature thus fulfils our purpose, by allowing it to support us in turn (Altman: 49-50).

Thirdly, Kant's aesthetics can support environmental duties. Nature's beauty invokes in us an aesthetic appreciation of it, separately from our own interests. This kind of appreciation, what Kant calls ‘disinterested satisfaction’ (5:205), is similar to our

appreciation of moral good. This is because both the beautiful and the good are ‘valued for their own sake’ rather than as a tool to achieve our own inclinations, leading Kant to the conclusion that beauty is a symbol of morality (5:351–4). Kant's account of the sublime follows along these lines. While appreciating natural beauty can develop character traits conducive to morality, the feeling of the sublime shows us that we have mental faculties ‘that surpass[es] every measure of the senses’ (5:250). Altman applies Kant's aesthetic theory at length, arguing that because sublime nature reveals to us that we are capable of rational autonomy, we are obligated to preserve nature, both because of its beauty and overpowering capacity (58).

Fourthly, Kant's various formulations of the *Categorical Imperative* can convincingly justify environmental duties. This is the avenue I explore in the next section, as it is the least discussed in the literature. In Section 1, I will analyse whaling through the lens of Kant's *Formula of Universal Law* and the *Formula of Humanity*, concluding that they justify an environmental ethic by proscribing maxims which cannot be universalised without becoming contradictory, and that treat people as means rather than ends-in-themselves. The CI is thus apt to ground an environmental ethic as it aligns moral choices with environmental protection by considering the effects on humanity as morally significant. In Section 2, I will apply Kant's political philosophy to the international whaling context to find that the IWC approximates to Kant's view of a federation.

Section 1. On the individual level

As established in Part II, our moral duties emanate from the *Categorical Imperative*, derived from our rational autonomy. This is a way of understanding individual moral duties that is independent from social tradition, cultural heritage, religious revelation, or any other external justification. I will now investigate whether an environmental ethic can be derived from the CI by testing the permissibility of whaling according to the *Formula of Universal Law* and the *Formula of Humanity*.

Formula of Universal Law

Causing damage to the environment by whaling can be seen to fail the *Formula of Universal Law* by responding to a maxim that causes either a *contradiction in conception* or a *contradiction in the will*. An example of a *contradiction in conception* is the following maxim: hunt whales unlimitedly for food provision. The reason why this maxim is a *contradiction in conception* is that it cannot be willed without including self-exceptions to said will, such as limiting whaling activity in time, by geographic area or by whale species. The consequence of the universal adoption of a contradictory maxim is detrimental as there would be no more whales left to be able to fulfil part of the maxim, which is to have sustenance. What is more, prioritising sustenance by whaling in the present limits the amount of food that can be extracted in the future from other species of fish. As we have previously seen, the removal of the whale species, being a *keystone species*, has cascading effects on the functioning and productivity of the marine ecosystem. The ecosystem services provided by live whales for the regulation and maintenance of the climate are such that their removal has wider consequences for food

provision, as whales would not fulfil their productive nutrient-cycling and carbon-capturing roles. Thus, the maxim underpinning whaling for food provision would fail Kant's FUL by being a *contradiction in conception*: it cannot be universalised, without one part of the maxim contradict the other part of the maxim.

An example of a *contradiction in the will* is the following maxim: hunt whales indefinitely for economic gain. Although the action can be willed without one part of the maxim being in contradiction with the other, it is impossible to will that the maxim of such action become a universal law. Were this maxim to be adopted universally, it would hamper one's ability to pursue one's autonomous ends because it would limit everyone's ability to develop their human potential. From the scientific description of the detrimental long-lasting and widespread effects of whaling on marine ecosystem services, and thus on human wellbeing, it is clear that whaling neglects some of the indispensable conditions for the fulfilment of human ends. For Kant, it is contradictory that rational agents act against the development of human potential in a finite world, where the limitations of our natural faculties necessarily imply mutual support (O'Neill, 1975: 27). This can aptly be translated into environmental terms as natural resources are limited too, requiring one rational agent not to infringe upon the conditions of autonomy of another. To summarise, we can confidently say that Kant's moral theory would not permit whaling as the maxim behind this action could not be made universal without contradicting itself, or humanity's conditions of autonomy, given the ecosystem implications of whaling. One might object that more prudent maxims are conceivable, such as hunting only as much as is necessary for subsistence. Said maxims will be investigated in the context of aboriginal whaling.

Formula of Humanity

The *Formula of Humanity* also induces environmental duties, as it requires one never to treat humanity as a means, rather as an end-in-itself. The negative repercussions induced by whaling on humanity's welfare treats humanity as a means to the ends of achieving economic gain or to follow cultural traditions (which the Ministry of Foreign Affairs of Japan invoked as a justification of whaling). It must be noted that the FH does not prohibit using nature to achieve economic subsistence altogether. For example, bringing land under plough and industrial processes are permissible under the FH as long as doing so does not damage the conditions of life (O'Neill, 1997: 137).[11] Inversely, restoring nature 'is analogous to our duty of reparation to other people' (Altman: 50), as a healthy, functioning and productive environment frees people to realise their ends. However, the scientific research on whale population recovery following the 1982 moratorium shows that restoring the damages done to the marine ecosystem is not inconsequential. As I explained above, some species of whales did not recover from whaling due to the nature of the geographic area and population dynamics (Clapham *et al.*); whilst other species did recover, causing negative changes on the structure of the ecosystem (Surma and Pitcher). Thus, in order for our maxims to be coherent with the FH, we must refrain from the environmental harm caused by whaling, thereby allowing people to pursue their ends.

[11] The moral permissibility of different types of whaling will be explored in the next section.

Consideration of future generations

Another reason why Kant's CI is apt to ground an environmental ethic is its timeless standpoint, which is essential given the long-term effects that characterise environmental damages. For example, none of the whale populations have recovered to pre-twentieth century whaling levels (IWC, 2020), and the cascading ecosystem consequences are still to be felt by future generations. Generational responsibility is a central consideration in environmental ethics, encapsulated by Greta Thunberg's influential message.[12] Although Kant does not explicitly broach the issue, the CI is necessarily inter-generational because of the general form that maxims must take. The consensus in Kantian scholarship is that maxims should be formulated in such a way that avoids distinctions between agents under consideration (Herman, 1993: 64; 116) to avoid applying to specific people. Thus, maxims should not distinguish between currently existing and future persons. Instead of being concerned with specific agents, the object of moral judgement for Kant is an agent's maxim (4:394; 399–401). A maxim which involves disregard for damages felt by future generations would not be supported by the FH as it would involve treating future people as means to current ends, undermining the conditions for their autonomous pursuit of ends and thus not being ‘in accordance with their dignity as rational agents’ (Altman: 53). Furthermore, it would be a *contradiction in the will* to harm future generations by disregarding the environment. This is because one's ability to autonomously pursue one's ends would be thwarted by previous generations pursuing maxims whose actions had pernicious consequences for one's current generation. Thus, disregarding the effect felt

[12] See, for example, Thunberg's speech addressed at the U.N.'s Climate Action Summit in New York City on 23 September 2019.

by future generations as a consequence of environmental degradation in the present is not permissible under both the FUL and the FH of the CI.

To summarise, I have shown how two formulas of the CI justify an environmental ethic by proscribing maxims which cannot be universalised without becoming contradictory, and that treat people as means rather than ends-in-themselves. Analysing whaling through the lens of the CI aligns moral choices with environmental protection by considering the effects on humanity as morally significant. Formulated in positive terms, a Kantian outlook would support 'utilizing [nature] primarily for moral purposes, that is, for those uses which are necessary to our autonomy' (Gillroy: 145). By viewing nature as being instrumental to empower our autonomy, our relationship with nature is what Barry (1990: xlv) would call ideal-regarding, rather than want-regarding. This distinction reveals that Kant's ethics are more aligned with an environmental ethic than is usually conceded by the consensus view in environmental ethics.[13]

[13] For example, Frankenka (1962: 23) argues that moral arguments with anthropocentric assumptions, such as Kant's, are contrary to an environmental ethic.

Section 2. On the interstate level – The IWC and aboriginal whaling

In the previous section I have provided an anthropocentric account of environmental duties from an individual perspective, using Kant's CI. In this section, I will apply this knowledge to the international context of Japan's position with respect to the International Whaling Commission. I will first explore whether the IWC aligns with Kant's vision of international order, finding that it resembles a federation, upon close inspection. I will then investigate whether the IWC regulations on catch limits comply with the spirit of the CI discussed above. I will conclude that the moratorium on commercial whaling complies with the CI, whereas the concession provided for aboriginal whaling is less definitive.

Cosmopolitan order of the IWC

O'Neill observes that Kant is often charged with 'empty formalism' by critics who object that one cannot derive concrete moral commands from the CI (1975: 3). I have directly met this criticism by applying the CI to environmental duties on the individual level. On the interstate level, Kant responds to this criticism by highlighting that his cosmopolitan idea of a universal community 'is not a philanthropic (ethical) principle but a principle *having to do with rights*' (6:352). Furthermore, Kant's justification for the need of cosmopolitan right in *PP* is strikingly fitting for the issue currently at hand. He argues that the interdependence of communities of the earth is such that 'a violation of right on *one* place of the earth is felt in *all'* (8:360). Similarly, as I explained above, the interconnected nature of ecosystems means that damage to one species can have cascading repercussions that extend very far in space and time. It is thus desirable to investigate the application of Kant's cosmopolitan order to the context of the IWC.

The organisation of the IWC resembles Kant's vision of a league of nations. Firstly, membership to the Commission is voluntary, and countries can leave as freely as they entered into association, as is detailed in the Article XI of the International Convention of the Regulation of Whaling (ICRW).[14] Secondly, although the ICRW is legally binding, meaning infractions are faced with penalties, the coercive power of the IWC is limited to its member countries. Under the current structure, a country that does not wish to adhere to the whaling moratorium can leave the association within a year and resume commercial whaling, as was the case of Japan as of July 2019. Thus, even if the IWC was able to establish the permissible level and type of whaling in line with the CI (described in the following sub-section), it does not have the coercive power to bring about a universal and lasting accordance with the *universal principle of right* (6:355).

However, a closer look at the IWC through the lens of international relations reveals the IWC has the potential to resemble a federation more closely than is initially apparent. Firstly, the fact that whales are highly migratory species makes it difficult for Japan to limit the effects of its whaling practice to its exclusive economic zone. As Japan is bound by Article 61.2 of the United Nations Convention of the Law of the Sea,[15] which stresses the state's obligation to avoid over-exploitation, Japan has to manage its catch stocks in coordination with its neighbours, who are mostly members of the IWC.[16] Furthermore, Article 65 of said UN Convention legally binds Japan to 'cooperate [...] with the appropriate international organisations', which is inexorably the IWC. For these

[14] State parties are only required to give notice of their withdrawal on or before January of the year they wish to withdraw.
[15] Ratified by Japan in 1996.
[16] Such as Russia, China, the Republic of Korea, Australia, New Zealand and the United States of America.

reasons, Japan remains obliged to cooperate with the IWC, thus obstructing withdrawal from this international union and its accompanying commitments. Secondly, the coercive power of the IWC extends beyond the legally binding obligations present in the ICRW, to the platform it provides for countries to engage with, and exert pressure upon on each other. For example, although Japan made a reservation to the whaling moratorium in 1982, the reservation was withdrawn following threats from the USA to reduce Japan's fishing quota in US waters (Black, 2007). This kind of informal economic sanction can be seen as part of the IWC's coercive power. To conclude, although upon first look it may seem that the IWC resembles Kant's league of nations, a close examination of the international law implications and the hard economic power of IWC member states shows that the IWC exhibits the coercive mechanisms to be considered a federation, Kant's preferred type of international institution.

Aboriginal whaling practices

I will now investigate whether the regulations on whaling set in place by the IWC are in line with the CI. The IWC has distinguished three types of whaling: commercial, for scientific research and for aboriginal subsistence (Freeman, 1993: 243). The IWC's moratorium only concerns commercial whaling, allowing native populations of Alaska, Oriental Siberia and the certain Caribbean islands to continue their whaling practices. According to Donovan (1982: 80), aboriginal subsistence whaling means whaling carried out on behalf of ‘aboriginal, indigenous or native people who share strong community, familial, social and cultural ties related to a continuing traditional dependence on whaling’. Kant would not see cultural and traditional ties to whaling to be morally significant in the context of duties. When Kant says in *Critique of the Power of Judgement*

that nature can be used as a means to achieve culture, he has a specific conception of culture in mind, as ‘not every kind of culture is adequate’ (5:431). The kind of culture towards which nature can serve requires a civil constitution ‘in which the abuse of reciprocally conflicting freedom is opposed by lawful power’ (5: 432). As we have seen in the previous section that whaling involves an infringement on people's conditions of autonomy, the culture of whaling practices would not conform to the kind of culture Kant allows nature to serve. Rather, it is the kind of culture that he would suggest be brought under a ‘lawful power’ to avoid conflicting freedom, potentially embodied by the IWC.

Nevertheless, aboriginal whaling cultures have other morally significant characteristics. Based on anthropological descriptions of aboriginal whaling, their underlying principles tend to abide by the FUL. Freeman *et al.* (1998) study several aboriginal Japanese whaling cultures, unveiling an underlying principle of sustainability. The moral concern with perpetuating the traditional way of life (3), along with the community's reliance on the environment to supply nutritional and material needs (67) implies a strong awareness of the principle of universalisability inherent to the FUL. The ‘shared understanding of the relationship existing between humans, whales and the environment’ inherent in their whaling culture dissuades excessive hunting to the extent that would impact the functioning of the ecosystem, which would ‘result in both social and supernatural sanction’ (5). Furthermore, the ‘whale memorial rites’, which serve as a ‘forum for the community to express their common interest and social solidarity’ (4) suggest an assimilation of the principle of beneficence that the FUL relies on, as whale hunters acknowledge the duties emanating from the mutual support of each other's means of autonomy.

Responding to the aforementioned objection that whaling could be driven by moderate maxims, I argue that although it is likely that the spirit of the CI is integrated into aboriginal whaling practices, it is not guaranteed, especially given the influence of modernisation.[17] It should not be assumed *de facto* that aboriginal practices comply with the CI, which Kant would regard as an unjustified exception to laws that are general in nature. Tillman points out that excessive permissibility of international whaling conventions has led to taking conservation risks for aboriginal hunts that would not have been taken with commercial operations, precisely because of the belief that aboriginal whaling is 'self-limiting' (441). The application of the FUL and the FH of the CI that I have proposed in the previous section could serve to overcome such differences in international whaling standards. The moral permissibility of whaling practices would be based on the effects on human wellbeing of an action from an ecosystem perspective, rather than on approximations of the values underlying cultural traditions. Kant's culturally-independent approach is useful for our current purposes, as it extends beyond cultural specificities and their evolution over time.

[17] Morseth notes that the adoption of new technologies, as well as the integration into the American workforce of Alaskan aboriginal communities has led to 'a transformation of beliefs about the significance of hunting practices' after which, practices became less cooperative (1997: 241). The evolution of aboriginal practices with technology was echoed by the Government of Japan (Tillman, 2008: 442).

CONCLUSION

In response to Japan's resumption of commercial whaling, this essay addresses two questions. The first question is whether Kant's *Categorical Imperative* can convincingly ground environmental duties. I have found the CI to support an environmental ethic as it considers the effects on humanity of environmental harm as morally significant, aligning moral choices with environmental protection. Given the ecosystem implications of whaling, Kant's moral theory would proscribe most kinds of commercial whaling as the maxim behind this action (1) could not be made universal without contradicting itself, or (2) humanity's conditions of autonomy, and (3) would treat people as means rather than ends-in-themselves. The second question is whether these duties can be extended to the political sphere, and thus whether they can be imposed. Although Kant's political philosophy does not envision an imposition of the CI on the state-level, Kant's vision of cosmopolitan order closely resembles the IWC, who sets standards that are mostly aligned with the CI.

In the coming years, environmental duties are bound to be ever-present in discussions that involve international standard-setting on environmental issues. If we believe moral considerations should influence environmental policy, it is crucial to call upon philosophers who are central to our moral thinking such as Kant. These ethical judgements will be incomplete without an understanding of the dynamic ecosystem effects of human activity from a scientific perspective. By providing an anthropocentric account, this essay has not only disproven criticisms of Kant's “empty formalism” but has also begun to construct an environmental ethic that can be convincing across and beyond the fault lines of environmental philosophy.

Word Count: 9991

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